Aaron G. Whaley, Esq.
712 Lyndon Lane
Louisville, KY 40222
Ph: (502)583-4022
Fax: (502)364-9363

New Client Information Sheet

Type of case:
Motor Vehicle Collision _____ Slip & Fall _____ Work-Related Injury _X_ Other: _____

Date: _____

Full Name: _____

Address: _____
_____
_____

Home Phone: _____
Cell Phone: _____
Email: _____

Age: _____ DOB: _____ Gender: ____
Social Security #: _____
Drivers' License #: _____

Employer: _____
Address: _____
_____
_____
Supervisor: _____
Phone #: _____
May we contact your employer in an emergency?
Yes _____ No _____ Other _____

Health Insurance Information:
Carrier: _____
Policy Holder: _____
Policy #: _____

Workers' Compensation Insurance:
Carrier: _____
Claim #: _____
Adjuster: _____

Marital Status:
Single _____ Married _____ Divorced _____
Separated _____ Widowed _____

Spouse's Name: _____
Address: _____
_____
_____

Cell Phone: _____
Email: _____

Age: _____ DOB: _____ Gender: ____
Social Security #: _____
Spouse's Employer: _____

Date of Incident: _____

Describe what happened: _____
_____
_____
_____
_____
_____
_____
_____
_____
_____
_____

How did you hear about The Whaley Law Firm?
_____

Aaron G. Whaley, Esq.
712 Lyndon Lane
Louisville, KY 40222
Ph: (502)583-4022
Fax: (502)364-9363

Non-Solicitation AFFIDAVIT

I hereby acknowledge and affirm that no person in his/her individual capacity or his/her capacity as a public or private employee, or any firm, corporation, partnership, subcontractor, or in association with The Whaley Law Firm solicit me for the purpose of making a claim for personal injury protection benefits or any insurance claim with The Whaley Law Firm under my existing policy of automobile insurance or any insurance policy for which I may qualify for benefits as a result of an accident occurring on or about _____.

If I did not have insurance at the time of the accident, to make a claim for insurance benefits under another policy of insurance that I may qualify for benefits. Further I hereby acknowledge and affirm that I was injured as a result of an accident in _____ county, in the state of _____. I was not forced or requested to treat at _____, as a result of my injuries and that The Whaley Law Firm nor anyone associated with The Whaley Law Firm has offered my money, services or other considerations, gifts or promises for the purpose of treating with my specific provider.

Aaron G. Whaley
The Whaley Law Firm, PSC
Aaron G. Whaley

_____
Client Name (Print)

Date: _____

_____
Client Signature

Aaron G. Whaley, Esq.
712 Lyndon Lane
Louisville, KY 40222
Ph: (502)583-4022
Fax: (502)364-9363

Workers' Compensation Fee Agreement

(For Representation Before the Department of Workers' Claims)

I hereby retain The Whaley Law Firm, PSC to represent me in matters related to an injury sustained within the scope of my employment with:

_____

(EMPLOYER NAME & LOCATON)

I understand The Whaley Law Firm, PSC's representation is for ALL benefits to which I may be entitled for each injury sustained including Indemnity Benefits for Temporary Total Disability, Permanent Partial Disability and/or Permanent Total Disability benefits or, if signing for a deceased worker, Death Benefits, Medical Expenses and/or Vocational Rehabilitation.

In consideration of the services to be rendered by The Whaley Law Firm, PSC, I agree to pay an Attorney Fee as authorized by the Workers' Compensation Law and Appellate Courts Decisions. I understand the Workers' Compensation Law currently provides an Attorney Fee for each work-related injury as follows: Twenty Percent (20%) of the first $25,000.00; Fifteen Percent (15%) next $25,000.00; Ten Percent of the remainder of the settlement/award, not to exceed a maximum of $18,000.00.

I agree to pay the Attorney Fee approved by an Administrative Law Judge pursuant to the Workers' Compensation Law and Appellate Courts Decisions. Additional representation after my initial case becomes final by settlement/opinion, will be at the discretion of The Whaley Law Firm and will require a separate Attorney Fee Agreement.

I understand the methods by which the Attorney Fee may be paid include:

- Out of pocket – Directly from personal funds already available
- If my claim is settled in a lump sum, fees may be retained from said proceeds or
- In the case of an Award by an Administrative Law Judge, in a lump sum, the Employer and/or its workers' compensation carrier is entitled to a credit against future benefits for paying the fee in a lump sum at present. If the weekly reduction is taken only against future payments, the credit may further reduce my future rate of benefits.

I understand there will be costs incurred in the litigation of my Kentucky Workers' Compensation Claim and agree to any & all costs out of my portion of any settlement/award. In the event there is insufficient funds in the past-due benefits recovered by settlement/award to pay for costs, I agree to pay costs out of future income benefits and hereby authorize an Administrative Law Judge of the Department of Workers' Claims to order the payment of future benefits be made to my counsel's office to pay all costs incurred in the litigation of my claim. I further understand, I may elect to pay the costs out of my personal funds.

If the attorney, having made a reasonable investigation, determines that it is not feasible or proper for a claim to be pursued, the attorney may notify the client of that determination and the attorney may withdraw from further representation of the client under this civil contract.

Aaron G. Whaley
The Whaley Law Firm, PSC
Aaron G. Whaley

_____
Client Name (Print)

_____
Client Signature

Date: _____

Form 109
Attorney Fee Election
Adopted March 15, 1995

DEPARTMENT OF WORKERS CLAIMS
FRANKFORT, KENTUCKY 40601

State's File Number: _____
Carrier For: _____
Employer: _____
Carrier's File No. _____

STANDARD FORM FOR

ATTORNEY FEE ELECTION

I hereby certify that my attorney has fully explained to me my options regarding the payment of attorney fees. I hereby select the following method:

A. _____ I elect to pay my attorney's fee out of my personal funds.

B. _____ I elect to have any attorney's fee paid in a lump sum and to have each of my weekly benefits equally reduced until the defendants have recouped the amount of my attorney's fee.

C. _X_ My case has been settled for a lump sum. I elect to pay my attorney's fee out of my lump sum settlement.

_____, plaintiff herein, being duly sworn, states that the statement of the foregoing election is true.

_____
Plaintiff

SUBSCRIBED AND SWORN to before me this _____ day of _____, 20___.

_____
Notary Public or other authorized officer

I hereby certify that I have fully explained the provisions of KRS 342.320 to my client.

Aaron G. Whaley
Attorney for Plaintiff

Form 113
Designation of Physician
Revised 03-12-03

Two-Sided Form

COMMONWEALTH OF KENTUCKY
OFFICE OF WORKERS' CLAIMS
Claim No. _____

NOTICE OF DESIGNATED PHYSICIAN

EMPLOYEE: _____
Name

_____
Street Address

_____ ( ) _____
City, State, Zip Telephone Number

_____ _____
Date of Birth Social Security Number

EMPLOYER AT TIME OF INJURY OR LAST EXPOSURE:

_____
Name

_____
Street Address

_____
City, State, Zip

NATURE OF INJURY OR OCCUPATIONAL DISEASE: _____

_____

DATE OF INJURY OR LAST EXPOSURE: _____

FIRST DESIGNATED PHYSICIAN:

_____
Name

_____
Street Address

_____ ( ) _____
City, State, Zip Telephone Number

Accepted by: _____

MEDICAL INFORMATION RELEASE: I hereby waive any privilege I may have to restrict the release of information or written material reasonably related to the work-related injury/disease for which I have sought treatment, and I consent to the release of this information or written material to the medical payment obligor, my employer, Special Fund, Uninsured Employers' Fund, or attorneys representing me or any of the parties named above.

_____ _____
Date Employee Signature

MEDICAL PAYMENT OBLIGOR:

_____
Name Of Obligor

_____
Representative

_____
Street Address

_____ ( ) _____
City, State, Zip Telephone Number

This form identifies the designated physician and must be returned to the medical payment obligor within ten (10) days after treatment begins. An identification card will be provided to the employee, and that card should be presented when medical treatment is required.

Form 105
October 2016 Edition

KENTUCKY DEPARTMENT OF WORKERS' CLAIMS
PLAINTIFF'S CHRONOLOGICAL MEDICAL HISTORY

Include all injuries and major illnesses to the date of filing of the claim
(Begin with the most recent treatment)

Name	Claim Number

Name and Address of Physician or Hospital	Date Treatment Received	Nature of Injury or Disease and Body Part affected	Still under a Doctor's care?
1.			
2.			
3.			
4.			
5.			
6.			
7.			

I hereby certify that the above information is true and correct to the best of my knowledge and belief.

Plaintiff's or Attorney's Signature

Date

Aaron G. Whaley, Esq.
712 Lyndon Lane
Louisville, KY 40222
Ph: (502)583-4022
Fax: (502)364-9363

HIPAA COMPLIANT MEDICAL AUTHORIZATION

(Authorization to Release Protected Health Care Information)

To:

Dear Medical Records Clerk:

I have retained The Whaley Law Firm, PSC to represent me in matters related to an injury sustained due to a third parties' negligence. Please forward a copy of any & all records not previously provided to The Whaley Law Firm upon request.

Pursuant to the Health Insurance Portability & Accountability Act (HIPAA) Privacy Regulations, 45 CFR 164.508, the provider listed above is hereby authorized to release to The Whaley Law Firm, PSC or any of their representatives, all medical records, including but not limited to: Office Notes, History, Physical, Consultation Notes, Discharge Summaries, Orders, Progress Notes, Laboratory Results, Nurses' Notes, Emergency Room Records, Operative Reports, In-Patient Records and films of X-Rays, MRIs, CT Scans, or PET Scans, Pharmacy and Drug Records, Medical Bills and Health Insurance Information, Medicaid/Medicare Records, concerning ANY medical treatment that I have received from you and/or at your facility, as well as ALL such records which you keep in the regular course of business that are found in my medical record file.

I hereby authorize the release of ANY & ALL records regarding mental health, psychiatric (other than psychotherapy notes, which must be requested under separate authorization), Chemical Dependency or HIV.

A photostatic copy hereof shall be as valid as the original.

I hereby authorize a FREE COPY of my medical records pursuant to KRS 422.317 be sent to the extent I have not already requested my one free copy.

The purpose of this authorization and request is to permit my attorney to obtain ALL medical information pertaining to my physical and mental condition(s). This authorization expires in three (3) years from the date of the signature. The aforementioned expiration date has not passed, as this matter is on-going. I hereby authorize The Whaley Law Firm, PSC. to speak to my healthcare providers privately or to take the testimony at deposition and/or trial as may be requested.

I have the right to revoke this authorization in writing by providing a signed, written notice of revocation to the healthcare provider listed above and to The Whaley Law Firm, PSC. I understand that there are exceptions to the right to revoke. Among the exceptions to the right to revoke are that an individual may not revoke an authorization to the extent that the covered entity has taken action in reliance thereon. Medical Providers may not condition treatment or payment on whether the above-listed patient executes this authorization. The information disclosed pursuant to this authorization may be subject to re-disclosure and no longer protected by the privacy regulations promulgated pursuant to the Health Insurance Portability and Accountability Act (HIPAA)

_____ _____
Client Signature Date of Birth

_____ _____ Date: _____
Client Name (Print) Social Security

FORM 106
ADOPTED JULY 2003

COMMONWEALTH OF KENTUCKY
DEPARTMENT OF WORKERS' CLAIMS
CLAIM NO:_____

MEDICAL WAIVER AND CONSENT

I, _____ having filed a claim for workers' compensation benefits, do hereby waive any physician-patient, psychiatrist-patient, or chiropractor-patient privilege I may have and hereby authorize any health care provider to furnish to myself, my attorney, my employer, its workers' compensation carrier or its agent, the Division of Workers' Compensation Funds, the Uninsured Employers' Fund, or Administrative Law Judge any information or written material reasonably related to my work-related injury occurring on or about _____ any medical information relevant to the claim including past history of complaints of, or treatment of, a condition similar to that presented in this claim or other conditions related to the same body part.

Such information is being disclosed to the purpose of facilitating my claim for Kentucky workers' compensation benefits.

I understand I have the right to revoke this authorization in writing at any time, by sending written notification to each individual health care provider, but such revocation will not have any affect on actions taken prior to revocation. Moreover, inasmuch as KRS 342.020(8) requires a medical waiver to be executed, revocation may result in suspension or delay of the workers' compensation claim.

I understand that no medical provider may condition treatment or payment on whether I sign this medical waiver; however, I further understand that failure to sign this medical waiver may result in suspension or delay of the workers' compensation claim.

I understand that the information used or disclosed pursuant to this medical waiver may be subject to re-disclosure by the recipient.

This authorization shall remain valid for 180 days following its execution. A photocopy of the authorization may be accepted in lieu of the original.

The authorization includes, but is not restricted to, a right to review and obtain all copies of all records, x-rays, x-ray reports, medical charts, prescriptions, diagnoses, opinions and courses of treatment.

Signed at _____, Kentucky, this _____ day of _____, 20_____.

_____
Signature of Patient Or Personal Representative

Social Security Number: _____

Aaron G. Whaley
Witness Signature

Workers' Compensation Attorney
Description Of Personal Representative's Authority

KENTUCKY WORKERS' COMPENSATION AND HIPAA

On April 14, 2003, the federal Health Insurance Portability and Accountability Act [HIPAA] privacy regulation will take effect. This regulation limits the situations in which medical providers may release patient information, unless the information is necessary for the purpose of treatment, payment, or health care operations. Moreover, it is important to note that disclosures for workers' compensation are in most instances exempt from HIPAA privacy requirements. The exact wording is as follows: "A covered entity may disclose protected health information as authorized by and to the extent necessary to comply with laws relating to workers' compensation…"

Since HIPAA defers to state law regarding disclosures relating to workers' compensation, it is important for claimants and medical providers to know what Kentucky law requires for disclosure of patient information. An employee who reports a work injury or who files for workers compensation benefits must "execute a waiver and consent of any physician-patient, psychiatrist-patient, or chiropractor-patient privilege with respect to any condition or complaint reasonably related to the condition for which the employee claims compensation." KRS 342.020 (8). Kentucky law further states that once this Form 106 is signed, any health care provider "shall, within a reasonable time after written request by the employee, employer, workers' compensation insurer [or its agent or assignee], special fund, uninsured employers' fund, or the administrative law judge, provide the **requesting party** with any information or written material reasonably related to any injury or disease for which the employee claims compensation."

Once the Form 106 is signed, health care providers may disclose information as set out in Kentucky law. Another section of the regulation allows release of information pursuant to an administrative or judicial order or subpoena, provided that there has been a reasonable effort to notify the injured worker [or his attorney] that such a request has been made. Should there be questions regarding disclosures pursuant to this form, appropriate legal counsel should be consulted or you can contact the Department of Workers' Claims at 1-800 554-8601.

The Centers for Medicare & Medicaid Services (CMS) is the federal agency that oversees the Medicare program. Many Medicare beneficiaries have other insurance in addition to their Medicare benefits. Sometimes, Medicare is supposed to pay after the other insurance. However, if certain other insurance delays payment, Medicare may make a "conditional payment" so as to not inconvenience the beneficiary, and then recover after the other insurance pays.

Section 111 of the Medicare, Medicaid, and SCHIP Extension Act of 2007 (MMSEA), a federal law that became effective January 1, 2009, requires that liability insurers (including self-insurers), no-fault insurers, and workers' compensation plans report specific information about Medicare beneficiaries who have other insurance coverage. This reporting is to help CMS to properly coordinate payment of benefits among plans so that your medical claims are paid promptly and correctly.

We are asking you to answer the questions below so that we may comply with this law.

Please review this picture of the Medicare card to determine if you have, or have ever had, a similar Medicare card.

Please note the Medicare Number located on this card.

Section I

Are you presently, or have you ever been, enrolled in Medicare?	☐ Yes	☐ No
If yes, please complete the following. If no, proceed to Section II.		
Full Name: *(Please print the name exactly as it appears on your SSN or Medicare card if available.)*		
Medicare Number:	**Date of Birth (Mo/Day/Year)** / /	
****Social Security Number:** (If Medicare Number is Unavailable) - -	**Sex** ☐ Female	☐ Male

** Note: If you are unable to provide your Medicare Number **and** uncomfortable with providing your full Social Security Number (SSN), you have the option to provide the last **5** digits of your SSN in the section above.

Section II

I understand that the information requested is to assist the requesting insurance arrangement to accurately coordinate benefits with Medicare and to meet its mandatory reporting obligations under Medicare law.

_____

Claimant Name (Please Print)

_____

Name of Person Completing This Form If Claimant is Unable (Please Print)

_____ _____

Signature of Person Completing This Form **Date**

If you have completed Sections I and II above, stop here. If you are refusing to provide the information requested in Sections I and II, proceed to Section III.

Section III

_____

Claimant Name (Please Print)

For the reason(s) listed below, I have not provided the information requested. I understand that if I am a Medicare beneficiary and I do not provide the requested information, I may be violating obligations as a beneficiary to assist Medicare in coordinating benefits to pay my claims correctly and promptly.

Reason(s) for Refusal to Provide Requested Information:

_____

_____

_____

_____

_____ _____

Signature of Person Completing This Form **Date**

Form 104
October 2016 Edition

KENTUCKY DEPARTMENT OF WORKERS' CLAIMS
PLAINTIFF'S EMPLOYMENT HISTORY

Name	Social Security Number/ Green Card

Name and Address of Employer (Begin with most recent Employer)	Type of Industry	Occupation	Period of Employment		Exposure to substances causing occupational disease (specify substance)	Was an injury sustained while working for this employer?
			Begin Date	End Date		
1.						
2.						
3.						
4.						
5.						
6.						
7.						

I hereby certify that the above information is true and correct to the best of my knowledge and belief.

Plaintiff's or Attorney's Signature

Date

Aaron G. Whaley, Esq.
712 Lyndon Lane
Louisville, KY 40222
Ph: (502)583-4022
Fax: (502)364-9363

Authorization to Release Employment Documents

(Wage & Salary Verification Attached)

Name of Employee: _____

Name of Employer:_____

Employee Position:_____

Date:_____

To Whom It May Concern:

You are hereby authorized to release and furnish to my attorneys, The Whaley Law Firm, PSC. or any of their agents and/or representatives working on their behalf, any and all information which may be requested relative to my employment, past, present or future up to and including copies of any and all other records which you may have concerning me or in connection to my employment. This release authorization applies to all employment files as well as any and all wage and salary documentation. Thank you in advance for your full cooperation with my attorney's request.

The foregoing authorization shall continue in effect and force until revoked by me is writing. A photostatic copy of this authorization shall serve the same purpose as the original.

_____
Employee Signature

_____
Employee Name

_____
Social Security #

_____
Date signed

Aaron G. Whaley, Esq.
712 Lyndon Lane
Louisville, KY 40222
Ph: (502)583-4022
Fax: (502)364-9363

Wage & Salary Verification Form

Name of Employee: _____

Name of Employer:_____

Employee Position:_____

Incident Date:_____

(Section Below to be completed only by the EMPLOYER)

To Whom It May Concern:

The employee listed below has applied for benefits under the Kentucky No-Fault Law as a result of injuries sustained in an accident on the date indicated. We understand this person is your employee or former employee. To assist us in determining benefits that may be due to this person, please provide us with answers to the following questions:

Dates of Employment: _____ to _____

Wage or Salary as of the Date of Incident: _____ per _____

Average number of hours worked per week: _____ Overtime Hours: _____

Average Bonus, Commissions or Gratuities if any: _____ per _____

Date Absence Began: _____ Date Returned to work: _____ Total Days:_____

*If not Consecutive days, please provide dates or total number of days missed.

Has the employee filed a claim for benefits under any workers compensation or similar law as a result of this accident? No _____ Yes_____

(*If Yes, please provide claim information such as carrier & claim number: _____)

_____	_____	_____
Employer Signature	Employer Title	Employer Email
_____	_____	_____
Employer Name (Print)	Employer Phone #	Date Completed

Form 114

KENTUCKY DEPARTMENT OF WORKERS CLAIMS

Frankfort, Kentucky 40601

REQUEST FOR PAYMENT FOR SERVICES OR REIMBURSEMENT FOR COMPENSABLE EXPENSES

TO BE FILED WITH THE RESPONSIBLE EMPLOYER OR ITS PAYMENT OBLIGOR

① Name, address and Workers Compensation claim number of Employee for whom services were provided or expenses incurred:

_____

_____

② Specific type and dates of service(s) provided:

Date(s)	Type of Service(s)

③ Name and address of physician who ordered services: (include written authorization if available)

_____

④ Reasonable value of services, including method of computation: $_____: _____

_____

⑤ Other expenses incurred for cure or relief of a work injury or occupational disease(s):

Date	Description of Expense(s)	$ Amount	If mileage, no. of miles
- - - - - - -	- Total	$:	Miles:

Please attach receipts for all purchased items.

Certification:

I hereby certify that the above services were performed or expenses were incurred for the cure or relief of a work injury or occupational disease sustained by the above employee.

Witness: Aaron G. Whaley

_____
(Name of Person requesting payment)

Date: _____

Address: _____

Phone no: _____

NOTICE:

Any person who knowingly and with intent to defraud any insurance company or other person files a statement or claim containing any materially false information or conceals, for the purpose of misleading, information concerning any fact material thereto commits a fraudulent insurance act, which is a crime.

Aaron G. Whaley, Esq.
712 Lyndon Lane
Louisville, KY 40222
Ph: (502)583-4022
Fax: (502)364-9363

Authorization to Digitally Replicate Signature

(For Facilitation of Documents Directly Related to the Legal Matter Listed)

Date:_____

Full Name: _____

Date of Incident: _____

Type of Incident: _____

To Whom It May Concern:

I,_____ having been duly & sufficiently advised hereby authorize my attorneys, The Whaley Law Firm, PSC. or any agent or representative working on their behalf to electronically sign my name to documents related strictly to a legal matter for which they currently represent me.

It will act as my electronic signature to this agreement and will constitute my acceptance of and agreement with all the terms and conditions as set forth in this agreement.

I further understand, my electronic signature may be used in the facilitation of my claim or case up to and including the authorization to release HIPPA protected information, Employment related information, Prior claim or case information, other information related to any previous legal matter.

The foregoing authorization shall continue in effect and force until revoked by me is writing. A photostatic copy of this authorization shall serve the same purpose as the original.

_____
Signature

_____
Name

_____
Date signed